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File No.: EXP202301942

RESOLUTION ON THE ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On January 9, 2023, a complaint was filed with the Spanish Agency for Data Protection against FINCEPTIV OÜ (hereinafter, the respondent).

The reasons for the complaint are as follows:

The complainant claims to have received commercial SMS messages sent from a hidden number and with a generic sender name of a woman, making it difficult to identify or block.

Along with the complaint, a copy of the SMS messages received between November 29, 2022, and January 9, 2023, is provided.

The complainant states that the number provided for unsubscribing from the system is an 8-digit number that does not exist.

A copy of a deletion request dated December 21, 2022, and a copy of two responses from the respondent are also provided.

In the first response, dated December 21, 2022, they inform the complainant that their request to unsubscribe from the database will be processed within 24 hours.

In the second response, dated December 22, 2022, they inform the complainant that their unsubscribe request has been processed, but their name and surname appear in the credit request.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on March 1, 2023, as noted in the acknowledgment of receipt in the file.

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No response has been received to this forwarding letter.

THIRD: On April 9, 2023, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Subdirectorate for Data Inspection requested the Tax Agency for the Tax Identification Number of the respondent entity, located in Estonia, in order to have its complete identification. A response has been received indicating that they cannot provide that identification code with the data provided.

LEGAL GROUNDS

I

Competence

According to the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict

them, subsidiarily by the general rules on administrative procedures."

Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Prohibition of commercial communications made via email or equivalent electronic means

Article 21 of the LSSI establishes the following:

"1. The sending of advertising or promotional communications by email or other equivalent electronic means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained..."

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the contact details of the recipient and will use them to send commercial communications regarding products or services of its own company that are similar to those that were initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily include an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such address is prohibited."

III

Conclusion

Prior to the initiation of sanctioning proceedings, it is necessary to identify the alleged responsible party for the administrative infringement.

Article 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, regarding the initiation agreement in sanctioning procedures, establishes the following:

"1. The initiation agreement will be communicated to the instructor of the procedure, with the transfer of any actions that exist in this regard, and will be notified to the interested parties, understanding in any case that the accused is included. Likewise, the initiation will be communicated to the complainant when the regulatory norms of the procedure so provide.

2. The initiation agreement must contain at least:

a) Identification of the person or persons allegedly responsible.

..."

Due to the lack of the NIF (Tax Identification Number) of the complained party, it was requested from the Tax Agency for their identification.

The Tax Agency has responded to the Spanish Agency for Data Protection that it has been unable to locate the requested NIF, which aims to identify legal persons and entities without legal personality for tax purposes.

Therefore, although the complaint filed could imply a violation of the LSSI (Law on Information Society Services) and data protection regulations, it is not possible to initiate sanctioning actions due to the lack of tax identification of the alleged responsible party. Without prejudice to the fact that if this data were known by the complainant, they could provide it to this Agency, which would continue the proceedings after verification.

In accordance with what has been indicated, by the Director of the Spanish Agency for Data Protection, IT IS AGREED:

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FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the complainant.

In accordance with the provisions of Article 50 of the LOPDGDD (Organic Law on Data Protection and Guarantee of Digital Rights), this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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